

STATE OF NEW YORK

3565--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 28, 2025

Introduced by M. of A. SANTABARBARA, COLTON, STECK, O'PHARROW, HEVESI, DAVILA -- read once and referred to the Committee on Correction -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the correction law, in relation to prohibiting county correction officers from dispensing medications to incarcerated individuals on the premises of a local correctional facility

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 505 of the correction law is amended by adding a
2 new subdivision 6 to read as follows:

3 6. County correction officers in local correctional facilities shall
4 not dispense or administer medications to incarcerated individuals on
5 the premises of a local correctional facility, as defined in subdivision
6 sixteen of section two of this chapter. This subdivision shall not,
7 however, impede correction officers or staff from dispensing or adminis-
8 tering medications used for the emergency treatment of known or
9 suspected opioid overdose.

10 § 2. This act shall take effect on the one hundred eightieth day after
11 it shall have become a law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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